

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday May 27, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03285	Sheila Andrews vs Steven M. Nailen, et al.
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Motion for Summary Judgment

Continued on the court's own motion to June 3, 2026, at 8:15 a.m. in Courtroom 8.

24CV-03375	Melesio Ortega vs Anthony Diaz, et al.
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Status Conference

Appearance required.

24CV-03479	Irene Delema vs City of Merced, et al.
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Motion for Summary Judgment

Defendants' motion for summary judgment is DENIED.

Plaintiff's objections to Merced Apartments LLC's evidence are SUSTAINED on the basis that the statements objected to in the declaration of Garrison lack foundation. The declaration does not show affirmatively that the declarant is competent to testify to the matters stated in her declaration. (Code. Civ. Prod. § 437c, subd. (d).)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, *as modified* (July 11, 2001).)

“A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851, *as modified* (July 11, 2001).)

Defendant does not make a prima facie case therefore the burden does not shift to Plaintiff show there is a triable issue of material fact.

Defendant has failed to meet their burden of production as to undisputed material facts (“UMFs”) 8, 9, 10, and 11. As the objections to the declaration of Garrison have been sustained, there is no evidence provided by Defendant that the court may consider that supports their UMFs 8, 9, 10, and 11. (See Code. Civ. Prod. § 437c, subds. (b)(1), (c).)

These facts are material as they go to ownership, possession, or control over the subject sidewalk.

“[T]he duties owed in connection with the condition of land are not invariably placed on the person [holding title] but, rather, are owed by the person in possession of the land [citations omitted] because [of the possessor's] supervisory control over the activities conducted upon, and the condition of, the land.” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1157–1158.)

These elements have not been negated by Defendant's motion and therefore remain triable issues of material fact.

As the motion fails regarding ordinary premises liability, and there was no alternative motion for summary adjudication, the court does not reach Defendant's motion regarding Plaintiff's alternative premises liability theory based on Streets and Highways Code section 5610.

Accordingly, as Defendant does not make a prima facie case the motion for summary judgment is DENIED.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Case Management Conference

Appearance required.

25CV-02427

Isaac Garcia vs Jason Miller, et al.

Motion to Disqualify Plaintiff's Counsel

The motion to disqualify Plaintiff's counsel is GRANTED.

The trial court is vested with the power “[t]o control in furtherance of justice, the conduct of its ministerial officers.” That power includes the disqualifying of an attorney. (Code. Civ. Proc. § 128, subd. (a)(5); *Henriksen v. Great American Savings & Loan* (1992) 11 Cal.App.4th 109, 113.)

The court finds Defendant has standing to bring the instant motion. “Protection of the attorney-client privilege is not the *only* ground for a motion to disqualify an attorney. An attorney may be disqualified for a variety of reasons, including the protection of confidential work product of opposing counsel.” (*Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal.App.4th 969, 980.) Here, although inartfully stated, Defendant is looking to protect the confidential work product and/or other privileged information, known by or in possession, of his former counsel, who was opposing counsel.

The court also finds that although Plaintiff's counsel has not represented Defendant, there is a substantial relationship between the parties. It is uncontroverted that Plaintiff's counsel has appeared in this matter prior to being employed by Defendant's former counsel; it is uncontroverted that Defendant's former counsel has appeared in this matter prior to hiring Plaintiff's counsel, and it is uncontroverted that Defendant's former counsel employed Plaintiff's counsel during this ongoing litigation. As such, there is a substantial relationship between the parties.

Although counsel argues that no confidential information has been received, “actual possession of confidential information is not required for an order of disqualification.” (*Dill v. Superior Court* (1984) 158 Cal.App.3d 301, 304.) “It is enough to show that there was a ‘substantial relationship’ between [the subjects of] the former and the current representation. If the former client establishes the existence of a substantial relationship between the two representations the court will conclusively presume that the attorney possesses confidential information adverse to the former client and order disqualification.” (*National Grange of Order of Patrons of Husbandry v. California Guild* (2019) 38 Cal.App.5th 706, 714.)

Although analyzed in a former client context, the above reasoning is applicable in this instance due to Plaintiff's counsel being employed by Defendant's former counsel. By virtue of the employment status between Plaintiff's counsel and Defendant's former counsel, which arose during this litigation, the court conclusively presumes Plaintiff's counsel possesses confidential information adverse to Plaintiff.

“The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.)